

## 25STCP04685 25STCP04685

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 25STCP04685 Hearing Date: September 23, 2026 Dept: 833

Center for Biological Diversity, Case No. 25STCP04685

Hearing:

September 23, 2026

v.

Location:

Stanley Mosk Courthouse

Department:

833

South

Coast Air Quality Judge: Joseph Lipner

Management

District, et. al.

[Tentative] Order Denying

Petition for Writ of Mandate and Other Causes of Action

### INTRODUCTION

The Center for Biological Diversity

(“Petitioner”) filed a petition for writ of mandate challenging the November 7,

2025 decision of the Governing Board of the South Coast Air Quality Management

District (the “Air District”) enacting a voluntary compliance mechanism (the “Cooperative

Agreement”) to reduce air pollution at the Ports of Los Angeles and Long Beach.

Petitioner asserts three causes of action: (1) A violation of the California Environmental Quality Act ("CEQA"), (2) Unlawful Abrogation of Police Powers, and (3) Violations of the California Clean Air Act.

The  
Court DENIES the petition.

## BACKGROUND

### A. Attainment Plans Under the Federal and California Clean Air Acts

The  
federal Clean Air Act is designed to attain and maintain compliance with the National Ambient Air Quality Standards ("NAAQS") within specified air quality control "regions." (42 U.S.C. §§ 7407, 7409; 40 C.F.R. Part 50; 40 C.F.R. Part 81.) The California Clean Air Act is designed to attain and maintain compliance with the California Ambient Air Quality Standards ("CAAQS") within specified air quality "basins." (Health & Safety Code, § 39606.)

Under  
the federal Clean Air Act, the Environmental Protection Agency must determine whether each air quality region is "attainment" or "nonattainment" of the NAAQS for each criteria pollutant. (42 U.S.C. § 7407, subd. (d)(4); 42 U.S.C. § 7501(2).) Once a region is designated nonattainment, the Clean Air Act requires states to prepare a "state implementation plan" ("SIP"). (42 U.S.C. § 7410.) Each SIP must provide for (1) "implementation of all reasonably available control measures as expeditiously as practicable," and (2) the attainment of the NAAQS by specified deadlines. (See 42 U.S.C. §§ 7502, subd. (a)(2), 7511, subd. (a).) Nonattainment SIPs must also provide for "reasonable further progress" toward attainment by showing the annual incremental emission reductions of the relevant pollutant in the interim needed to ensure timely attainment of the NAAQS by the applicable deadline. (42 U.S.C. §§ 7501(1), 7502, subd. (c)(2).) The Environmental Protection Agency must review and approve each proposed SIP. (42 U.S.C. § 7410, subd. (a)(1).)

Similarly,  
under the California Clean Air Act, the California Air Resources Board must determine whether each air quality basin is in attainment or nonattainment of

the CAAQS, an “attainment plan” must be prepared for each nonattainment region, and the California Air Resources Board must review and approve each attainment plan. (Health & Safety Code, §§ 39608, 40911, 40913.) Attainment plans must be designed to achieve the CAAQS by “the earliest practicable date” and to reduce district-wide emissions of each nonattainment pollutant or its precursors by at least 5% per year (averaged over consecutive three-year periods), unless the district cannot meet that target even with every feasible measure adopted on an expeditious schedule. (Health & Safety Code, §§ 40913, 40914.)

B.

Background to the Air District

The

“South Coast Air Basin” (the “Basin”) is a designated air quality control region under the federal Clean Air Act and an air quality basin under the California Clean Air Act. The Basin consists of the urban portions of Los Angeles, Riverside, and San Bernardino counties, and all of Orange County. (40 C.F.R. § 81.305; Health & Safety Code, § 40410.) The Air District is responsible for preparing the Basin’s “Air Quality Management Plans” (“AQMP”). (Health & Safety Code, §§ 40408, 40412.) Each AQMP serves as both the SIP under the Clean Air Act and the attainment plan under the California Clean Air Act for the Basin for specified pollutants. (Health & Safety Code, § 40460.) AQMPs set forth general “control measures” designed to attain and maintain the NAAQS and the CAAQS within the Basin. (Health & Safety Code, § 40913.)

The

Basin is known to have critical air pollution problems caused by the operation of millions of motor vehicles, stationary sources of pollution, frequent atmospheric inversions that trap aerial contaminants, and the large amount of sunshine that transforms vehicular and nonvehicular emissions into a variety of deleterious chemicals. (Health & Safety Code, § 40402, subd. (b).)

According

to the Air District, the Basin is in an “extreme” non-attainment area for the NAAQS for ozone. (AR 11527.) Ozone is formed when volatile organic compounds and nitrogen oxides react in the presence of sunlight. (AR 6720.) The key to reducing ozone is to reduce nitrogen oxides. (AR 6720.) Breathing high levels of ozone can cause a variety of negative health impacts such as asthma, chronic bronchitis, and emphysema, and increased susceptibility to lung infection. (AR

6719.)

C.

California Environmental Quality Act

CEQA

was designed to inform agency decision makers and the public about (1) the potentially significant impacts that might result from proposed projects, (2) ways that those impacts can be reduced or avoided through alternatives and/or mitigation measures, (3) prevent significant, avoidable damage to the environment by requiring changes in projects through the use of alternatives or mitigation measures when the governmental agency finds the changes to be feasible; (4) disclose to the public the reasons why a governmental agency approved the project in the manner the agency chose if significant environmental effects are involved. (Cal. Code Regs., tit. 14, § 15002, subd. (a); *Save Our Access v. City of San Diego* (2025) 115 Cal.App.5th 388, 396-397.) Under CEQA, an agency can approve a project notwithstanding significant impacts if the agency finds that overriding considerations outweigh the impacts. (Public Resources Code, § 21081, subd. (b); *Mission Bay Alliance v. Office of Community Investment & Infrastructure* (2016) 6 Cal.App.5th 160, 183.) Thus, CEQA does not necessarily “dictat[e] pro–environmental outcomes,” but does ensure that decisions are made with full knowledge of environmental consequences. (*Gooden v. County of Los Angeles* (2024) 106 Cal.App.5th 1, 14–15.)

A

public agency must generally prepare an environmental impact report (“EIR”) whenever the agency proposes to approve or to carry out a project that may have a significant effect on the environment. (Public Resources Code, § 21151.) The term “project” is broadly defined to include any activity that may cause a direct or reasonably foreseeable indirect physical change in the environment. (Public Resources Code, § 21065.) The term “significant effect on the environment” is defined as “substantial, or potentially substantial, adverse changes in the physical conditions” which exist within the project area, including changes in air quality. (Public Resources Code, § 21151, subd. (b); Public Resources Code, § 21060.5; Cal. Code Regs., tit. 14, § 15382.)

An

EIR must identify and describe “[d]irect and indirect significant effects of the project on the environment” (Cal. Code Regs., tit. 14, § 15126.2, subd.

(a)) and must also describe feasible mitigation measures and alternatives to the project that could avoid or minimize significant environmental impacts. (Cal. Code Regs., tit. 14, §§ 15126.4, 15126.6.)

A

program EIR can be prepared when there are a series of actions that are characterized as one large project and related by (1) geography; (2) as logical parts in the chain of contemplated actions; (3) in connection with the issuance of rules, regulations, plans, or other general criteria to govern the conduct of a continuing program, or (4) as individual activities carried out under the same authorizing statutory or regulatory authority and having generally similar environmental effects which can be mitigated in similar ways. (Cal. Code Regs., tit. 14, § 15168, subd. (a).) An agency shall incorporate feasible mitigation measures and alternatives developed in a program EIR into later activities in the program. (Cal. Code Regs., tit. 14, § 15168, subd. (c)(3).) However, when a later activity would have effects that were not examined in the program EIR, a new initial study [must] be prepared leading to either an EIR or a negative declaration." (Id. at subd. (c)(1).)

D.

The Port of Los Angeles and the Port of Long Beach

The City of Los Angeles and the City of Long Beach own the Port of Los Angeles and the Port of Long Beach (the "Ports"). These Ports are the largest in the nation in terms of container throughput. (AR 8057.) At the Ports, equipment is used to move cargo, rail cars, and trucks, with the three greatest contribution to emissions being rubber-tired gantry cranes, yard hostlers, and top handlers. (AR 6209.)

The Clean Air Act expressly preempts state and local standards relating to emissions from new motor vehicles and engines, new nonroad vehicles and engines, and new locomotives and locomotive engines. (42 U.S.C. § 7543, subd. (a), (e).) While the Air District does have authority to address Port-related mobile emissions through an "indirect source rule," that authority only allows the Air District to impose requirements on the Ports or their tenants – the Air District cannot impose requirements directly on mobile sources operated by tenants. (42 U.S.C. § 7410, subd. (a)(5); Health & Safety Code, § 40716, subd. (a)(1).)

The Ports have imposed such requirements in leases with terminal operators and “concession agreements” with companies that transport cargo at the Ports, such as trucking companies. (See *American Trucking Assns., Inc. v. City of Los Angeles* (2013) 569 U.S. 641, 645–646.) In 2006, the Ports adopted the “San Pedro Bay Ports Clean Air Action Plan” (“CAAP”) a joint program of emission–reduction strategies. (AR 3126.) Many of the actions connected with CAAP are voluntary in nature or occur as a result of grants or incentive programs. (AR 3126.) Other reduction targets are a result of implementation of federal and state regulations. (AR 4023.) A draft of the Cooperative Agreement (described in more detail below) states that CAAP-related programs since 2005 have resulted in a 91% reduction in diesel particulate matter, 72% reduction in nitrogen oxides, and 98% reduction in sulfur oxides. (AR 12107.)

E.

#### Adoption and Implementation of the Port-Related Control Measures

The 2016 AQMP contained Control Measure MOB–01 entitled “Emission Reductions at Commercial Marine Ports.” The measure sought to “quantify the emission reductions realized from the CAAP and credit the reductions into the SIP to the extent that these actions are real and surplus to the existing SIP.” (AR 161, 3126.) The AQMP itself did not attempt to estimate the emission reductions to be achieved by MOB–01. (AR 3123.) Nor were the reductions used in the attainment demonstration. (AR 3108.) Instead, the 2016 AQMP established a process for crediting emissions reductions achieved by MOB–01 to the SIP after the emissions reductions occur. (AR 3126; 4023.)

Before

any reduction can be credited, the Air District would have to demonstrate to the federal Environmental Protection Agency that the reduction in emissions would be real, quantifiable, surplus, enforceable, and permanent. (AR 150-151; 4023.) The Air District analyzed the environmental impacts of the 2016 MOB–01 control measure in a PEIR prepared for the 2016 AQMP. (AR 66–732.)

After

the Air District Governing Board adopted the 2016 AQMP in March of 2017, Air District staff convened working groups to discuss implementation of MOB–01. (AR 6136–6155.) Through 2021, the Air District negotiated draft MOUs with both

Ports. (AR 6353–6382; AR 6443–6476.) According to a slide deck of the Board of the Air District, the negotiations failed due to an impasse on enforceability. (AR 6552; 610508.)

In

February 2022, the Board began work on a new indirect source rule known as Proposed Rule 2304 (“PR 2304”). The 2022 AQMP, adopted in December of that year, sought to reduce emissions related to on-road heavy duty vehicles, ocean going vessels, cargo handling equipment, locomotives, and harbor craft that go to and from the ports. (AR 6893.) The Air District analyzed the environmental impacts of the 2022 control measure in a PEIR prepared for the 2022 AQMP (the “2022 PEIR”). (AR 1237.)

Between

2022 and 2025, Air District staff conducted a series of working group meetings, community meetings, site visits, and committee briefings on PR 2304. (AR 6674, 10450, 11527–11528, AR 11849–11850.) According to a summary prepared for the Board of the Air District, a consistent message from stakeholder engagement was that a lack of infrastructure was preventing deployment of zero-emission technologies. (AR 11527-11528.) According to a letter from environmental groups, Air District staff allegedly committed to adopt an indirect source rule by the first quarter of 2025. (AR 10451.)

Staff

released draft language for PR 2304 for consideration by the Air District Board on August 1, 2025. (AR 10516-10535.) However, on July 18, 2025, the ports submitted a draft Cooperative Agreement (“Cooperative Agreement”) as an alternative to PR 2304. (AR 11528; AR 10412–10443.) As explained on an Air District agenda, the Cooperative Agreement is an enforceable contractual agreement that is consistent with the objectives of AQMP control measure MOB-01 and closely mirrors the requirements proposed in PR 2304. (AR 11528.)

On

August 1, 2025, after public testimony, the Board directed staff to negotiate the terms of a Cooperative Agreement with the Ports. (AR 10791; 11853.) Air District held public meetings on August 28, 2025 and October 15, 2025 and five virtual office hour sessions to discuss the Cooperative Agreement. (AR 10795, 11530.)

On

November 5, 2025, Petitioner and others, submitted a comment letter opposing

the Cooperative Agreement. (AR 11206-011208.) The letter argued that the Cooperative Agreement is inadequate because it only addresses infrastructure planning and does not include binding emission reduction commitments. (AR 11207.) The letter also argued that the Cooperative Agreement does not fall within the scope of previously conducted CEQA review. (AR 11207-11208.)

The

Board of the Air District approved the final version of the Cooperative Agreement on November 7, 2025, under Resolution 25-22. (AR 2914-2915.)

The

Cooperative Agreement as approved obligates each Port to prepare zero-emission charging and fueling infrastructure plans ("ZE Plans") in three phases, with fixed approval deadlines: December 31, 2027 for container-terminal cargo handling equipment and drayage trucks; December 31, 2028 for remaining cargo handling equipment, locomotives, and harbor craft; and December 31, 2029 for ocean-going vessels. (AR 12124, 12131.) Each ZE Plan must include a baseline infrastructure inventory; planning targets; project-level details, including locations, technologies, costs, funding sources, schedules, permits, and CEQA documentation; and energy-supply and construction-workforce analyses. (AR 12125-12127.) The Agreement requires the Ports to "work with their Tenants, Port Source operators, and/or other Project Delivery Entities to implement the ZE Plans," "consistent with CEQA and other applicable laws and regulations." (AR 12133.) The Agreement sets forth penalties for noncompliance. For each default within its control, each Port must pay \$50,000 to \$200,000 into a Clean Air Mitigation Fund. (AR 12114-12116.) The Agreement has a five-year term which expires on December 31, 2030. (AR 12112.) Any party, however, may terminate the Agreement, for any reason, on 45 days' written notice. (Ibid.)

In

Resolution No. 25-22, the Board directed staff to "not pursue any new rulemaking that meets the objective of AQMP Control Measure MOB-01" during the term of the Cooperative Agreement, unless the Agreement is terminated before the end of the five-year term. (AR 65.)

According

to notes provided at the Air District board meeting, the Cooperative Agreement imposes essentially the same substantive obligations on the Ports as would have been required by PR 2304: the Ports must prepare port-wide infrastructure plans, set emissions reduction targets, meet specified milestones, and prepare

annual reports. (AR 11532, 11528, 10858, 10859.) The only difference is as to enforcement: Proposed Rule 2304 would have been enforced under the California Health & Safety Code and would include statutory penalties for violations while the Cooperative Agreement is enforceable under contract terms and conditions, including payments into a mitigation fund for violations. (AR 10859.)

As

required by CEQA, Air District staff considered whether the Cooperative Agreement was “within the scope” of the activities analyzed in the 2016 and 2022 PEIRs as provided for in the CEQA Guidelines. (Cal. Code Regs., tit. 14, § 15168, subd. (c).) Staff set forth this analysis in Attachment G to the November 7, 2025 Board package, a 101–page document entitled “CEQA Analysis of the Proposed Cooperative Agreement” (“Attachment G”). (AR 11960–12060.) The Air District Governing Board adopted the determinations set forth in Attachment G (AR 61–65), and the Air District filed a notice of determination the same day. (AR 1–4.)

F.

Petition for Writ of Mandate

On December 5, 2025, Petitioner filed its verified petition for writ of mandate, alleging (1) violations of CEQA; (2) unlawful abrogation of police powers; and (3) violations of the California Clean Air Act.

Petitioner filed an opening brief on May 15, 2026.

The Air District filed an Opposition on June 22, 2026.

Real Parties in Interest City of Long Beach and the City of Los Angeles filed a Joint Response on June 22, 2026.

Petitioner filed a reply brief on July 10, 2026.

STANDARD OF REVIEW

The petition

includes three causes of action for writ of mandate under either Code of Civil Procedure section 1085 or 1094.5. The

first cause of action alleges violations of CEQA. The second cause of action alleges an abrogation of police powers. The third cause of action alleges a violation of the California Clean Air Act.

A.

CEQA

In an action challenging an agency's decision under CEQA, the trial

court reviews the agency's decision for a prejudicial abuse of discretion. (Pub. Res. Code, § 21168.5.) "Abuse of discretion is established if the

agency has not proceeded in a manner required by law or if the determination or

decision is not supported by substantial evidence." (Ibid.; see also *Vineyard Area Citizens for Responsible*

*Growth, Inc. v. City of Rancho Cordova* (2007) 40 Cal.4th 412, 435.) Challenges to an agency's failure to proceed

in a manner required by CEQA are subject to a less deferential standard than

challenges to an agency's factual conclusions.

(*Vineyard*, supra at p.

435.) In reviewing these claims, the court

must "determine de novo whether the

agency has employed the correct procedures."

(Ibid.; see *Dry Creek*

*Citizens Coalition v. County of Tulare* (1999) 70 Cal.App.4th 20, 26.)

"Substantial

evidence includes fact, a reasonable assumption predicated upon fact, or expert

opinion supported by fact.... Substantial evidence is not argument, speculation,

unsubstantiated opinion or narrative, evidence that is clearly inaccurate or

erroneous, or evidence of social or economic impacts that do not contribute to,

or are not caused by, physical impacts on the environment." (Public Resources Code § 21080, subd. (e).) Under the substantial evidence test, the

court review "the administrative record to see if it contains evidence of

ponderable legal significance that is reasonable in nature, credible, and of

solid value, to support the agency's decision."

(*Protect Tustin Ranch*, supra, 70 Cal.App.5th at p. 960.) A court may not set aside an agency's approval of an EIR on the round

that an opposite conclusion would have been equally or more reasonable. (*Laurel*

*Heights Improvement Assn. v. Regents of University of California* (1988) 47

Cal.3d 376, 393 (*Laurel Heights*).)

An agency is presumed to have regularly performed its official duties. (Evidence Code § 664.) When an appellant challenges “the sufficiency of the evidence, all material evidence on the point must be set forth and not merely [its] own evidence.” (Toigo v. Town of Ross (1998) 70 Cal.App.4th 309, 317.) The petitioner “must lay out the evidence favorable to the other side and show why it is lacking.” (Defend the Bay v. City of Irvine (2004) 119 Cal.App.4th 1261, 1266.) A reviewing court “will not act as counsel for either party to an appeal and will not assume the task of initiating and prosecuting a search of the record for any purpose of discovering errors not pointed out in the briefs.” (Fox v. Erickson (1950) 99 Cal.App.2d 740, 742.)

“When an appellant fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived.” (Nelson v. Avondale HOA (2009) 172 Cal.App.4th 857, 862-863.)

B.

Abrogation of Police Powers and California  
Clean Air Act

For the second and third causes of action, it is petitioner's burden to establish that an agency's decision was “arbitrary, capricious, entirely lacking in evidentiary support, unlawful, or procedurally unfair.” (American Coatings Assn. v. South Coast Air Quality Management Dist. (2012) 54 Cal.4th 446, 460.) This is an extremely deferential test and requires a court to ensure an agency has considered all relevant factors and has demonstrated a rational connection between these factors, the choice made, and the purposes of the enabling statute. (County of Los Angeles v. City of Los Angeles (2013) 214 Cal.App.4th 643, 654.)

“On questions of law arising in mandate proceedings, [the court] exercise[s] independent judgment.” (Christensen v. Lightbourne (2017) 15 Cal.App.5th 1239, 1251.) The interpretation of a statute or regulation is a question of law. (See State Farm Mut. Auto. Ins. Co. v. Quackenbush (1999) 77 Cal.App.4th 65, 77.) To the extent “purely legal issues involve the interpretation of a statute [or regulation] an administrative agency is responsible for enforcing, [the court] exercise[s] [its] independent judgment, ‘taking into account and respecting the agency's interpretation of its meaning.’” (Housing

Partners I, Inc. v. Duncan (2012) 206 Cal.App.4th 1335, 1343; see also Yamaha Corp. of America v. State Bd. Of Equalization (1998) 19 Cal.4th 1, 11.)

How much weight to accord an agency's construction is "situational," and depends on the circumstances. (See

American Coatings Assn. v. South Coast

Air Quality Management Dist. (2012) 54 Cal.4th 446, 461-462.)

## JUDICIAL NOTICE

The

Court denies Petitioner's request for judicial notice.

Petitioner

requested judicial notice of a report for the Warehouse Actions and Investments to Reduce Emissions (WAIRE) Program from January 2026 and a description of The Public Trust Doctrine, available on the California Coastal Commission's website. These documents are all extra-record evidence. "As a general rule, a hearing on a writ of administrative mandamus is conducted solely on the record of the proceeding before the administrative agency."

(Richardson

v. City and County of San Francisco (2013) 214 Cal.App.4th 671, 702.) There is a narrow exception under which the court may augment the administrative record:

Where the court finds that there is relevant evidence that, in the exercise of reasonable diligence, could not have been produced or that was improperly excluded at the hearing before respondent, it may enter judgment as provided in subdivision (f) remanding the case to be reconsidered in the light of that evidence; or, in cases in which the court is authorized by law to exercise its independent judgment on the evidence, the court may admit the evidence at the hearing on the writ without remanding the case.

(Code Civ. Pro. § 1094.5, subd. (e).) "Augmentation of the administrative record is permitted only within the strict limits set forth in the statute." (Armondo v. Department of Motor Vehicles (1993) 15 Cal.App.4th 1174, 1180.) A request for judicial notice cannot be used to circumvent the rules constraining the admission of extra-record evidence. (Ballona Wetlands Land Trust v. City of Los Angeles (2011) 201 Cal.App.4th 455, 475, fn. 10.) The Los Angeles Superior Court Local Rules provide: "Any motion to augment the record under Section 1094.5, subd. (e) must be

filed as a noticed motion. A party considering filing a motion to augment should discuss the timing of the motion with the court at the trial setting conference." (LASC Local Rules 3.231(g)(3) [emphasis added].) Neither party moved to augment the administrative record with this extra-record evidence. The parties did not show that the requirements of section 1094.5(e) are met to augment the record. Petitioner does not show that, with the exercise of reasonable diligence, the description of the public trust doctrine could not have been submitted during the administrative proceedings. The WAIRE report appears to postdate the administrative decisions at issue, and the Court declines to consider evidence that is new at this point.

The Court also denies the Real Parties Harbor Commission of the Port of Los Angeles and Harbor Commission of the Port of Long Beach ("Real Parties") request for judicial notice. The Real Parties request judicial notice of various government documents that predate the filing of the petition, and there is no explanation for why they are not already part of the administrative record.

## ANALYSIS

A.

What is the proper standard of review?

The parties dispute which standard of review applies under CEQA for Petitioner's claim that the Air District failed to analyze the environmental impacts of the decision to proceed with a Cooperative Agreement.

Petitioner contends that the fair argument standard applies to review an agency's determination about whether to prepare a new or supplemental EIR in a later new project following certification of a program EIR. (Reply, 1:20-21.) The Air District contends that the fair argument standard applies only when the agency approves an activity that was not within the scope of the prior PEIR, and because this case involves a project that was in the scope of a prior PEIR. (Opposition, 10:4-28.)

The Air District is correct; the substantial evidence standard should be used. As

the Court lays out below, the Air District has shown that the Cooperative Agreement is within the scope of the previous PEIR and that all environmental impacts from the Cooperative Agreement have been analyzed in the previous PEIR. (IBC Business Owners for Sensible Development v. City of Irvine (2023) 88 Cal.App.5th 100, 118-119; Citizens for Responsible Equitable Environmental Development v. City of San Diego Redevelopment Agency (2005) 134 Cal.App.4th 598, 608 [California Environmental Quality Act (CEQA) statute does not require an agency to prepare an environmental impact report (EIR) for a project whose environmental impacts have been sufficiently analyzed in a prior program EIR or master EIR].)

B.

Was the Air District required to prepare a new CEQA document for the Cooperative Agreement?

After

certifying a PEIR, when an agency proposes to approve a “later activity” within the program, the agency must determine (1) whether the later activity would have effects that were not examined in the PEIR (Cal. Code Regs., tit. 14, § 15168, subd. (c)(1)), and (2) whether the later activity will have new or substantially increased significant effects based on changes in the program or new information. (Cal. Code Regs., tit. 14, § 15162.) If neither of these conditions is present, then the later activity is “within the scope” of the prior PEIR, and the agency need not prepare any new CEQA document. (Cal. Code Regs., tit. 14, § 15168, subd. (c)(1).)

Here,

the Cooperative Agreement implements the Port–related MOB–01 control measures adopted in the AQMPs. (AR 11966.) Therefore, the Air District evaluated whether the Cooperative Agreement qualify as a “later activity” within the scope of the previous analyses conducted in the PEIRs for the 2022 AQMP and the 2016 AQMP. (AR 11966-11967.) As required by CEQA, the Air District evaluated whether the Cooperative Agreement was within the scope of the PEIRs. The Air District’s evaluation and evidence is set forth in Attachment G, a 101–page document submitted to the Air District Governing Board when it approved the Cooperative Agreement. Attachment G concludes that the “environmental impacts associated with implementing the proposed Cooperative Agreement are within the scope of what was previously analyzed in the Final Program EIR for the 2022 AQMP for Control Measures MOB-01 and MOB-15, and Final Program EIR for the 2016 AQMP for Control Measure MOB-01. (AR 12053.) Accordingly, no EIR or other CEQA document

was required. (AR 12053.)

1.

Petitioner's argument that there was no substantial evidence to indicate the Agreement fell within the scope of the PEIRs

Petitioner's

first argument is that the record does not contain "substantial evidence" to claim that the "Agreement falls within the scope of the PEIRs." (Opening Brief, 11:24-13:28.)

When

an appellant changing an EIR for insufficient evidence fails to lay out the evidence favorable to the other side and show why it is lacking, that is fatal to the appellant. (*Defend the Bay v. City of Irvine* (2004) 119 Cal.App.4th 1261, 1266.)

Petitioner's brief includes very few citations

to Attachment G, which includes the Air District's reasons for arguing that the Agreement fell within the scope of the PEIRs. Petitioner does cite AR 11961 for the argument that the Cooperative Agreement is not "SIP-credible because it merely requires the Ports to prepare zero-emission infrastructure plans by 2028, unless extended, and then work with tenants and other entities to implement those plans or provide notice if it anticipates it is unable to do so." (Opening Brief, 12:11-14.) Petitioner explains this is concerning because the Cooperative Agreement deviates from the 2016 PEIR, which assumed that MOB-01 emission reduction measures would be real, quantifiable, enforceable, and permanent. (*Ibid.*)

This

argument is flawed for several reasons. First, whether emissions reductions from the Cooperative Agreement can be credited to the SIP has no bearing on whether the activities described in the Cooperative Agreement were within the scope of the activities contemplated in the Port-related control measures and analyzed in the Program EIRs.

Second,

this argument misstates the record, as neither MOB-01 measure presumed that emission reduction measures at the port would be SIP creditable. The 2016 version of MOB-01 stated that "to the extent that" the emissions reduction measures resulting therefrom turned

out to be SIP-creditable, the Air District will credit them to the SIP after they occur through rate-of-progress reporting or revised baseline inventories in future plan revisions. (AR 3126.) The 2022 version of MOB-01 did not address SIP creditability requirements in any way. (AR 6893.)

The

Cooperative Agreement also does require the Ports to implement the infrastructure plans. The Agreement provides that, after the Air District approves the infrastructure plan, “the Ports shall work with their Tenants, Port Source operators, and/or other Project Delivery Entities to implement the ZE Plans through the term of this agreement, including seeking all project-specific approvals and local development permits.” (AR 12133.) Having signed the Agreement, the Ports are now contractually obligated to prepare and implement the zero-emission infrastructure plans, and the Air District can legally enforce that obligation through the Agreement’s penalty provisions or otherwise. (AR 12113 [“Nothing contained in this paragraph is intended to limit any rights or remedies that the Parties may have under law”].)

Petitioner

also states that the Air District’s reliance on MOB-15 fails. (Opening Brief, 13:4.) In Attachment G, the Air District stated that the previous analyses of environmental impacts for Control Measure MOB-15 of the 2022 AQMP Final Program EIR covered the breadth of impacts that are expected to result from the development and implementation of infrastructure plans. (AR 11977.) While Petitioner contends that the Air District should have been more specific, legally what the Air District is required to do is conduct “a thorough investigation” to determine that “a particular impact is too speculative for evaluation.” (Cal. Code Regs., tit. 14, § 15145.) If an impact is too speculative for evaluation, the agency must make that note and terminate discussion of the impact. (Ibid.) The Court concludes that the Air District has properly applied Section 15145 in its analysis at AR 11977.

2.

Petitioner’s argument that the Cooperative Agreement has environmental effects not examined in the PEIR

Next,

Petitioner asserts that the Cooperative Agreement has environmental effects not examined in the PEIR. (Opening Brief, 13:19-14:21.) Petitioner does not even come close to meeting their burden to present evidence favorable to the other

side.

There

is not a single citation to Attachment G on Page 13 or Page 14 of the opening brief. Attachment G compared, topic-by-topic and in detail, the impacts considered in the Program EIRs with the impacts expected to result from the Cooperative Agreement. (AR 11968–11980.) Attachment G explained that while there was still speculation about the exact scope of future infrastructure plans, the development and implementation of infrastructure plans as required by the Cooperative Agreement could have the same or less significant impacts than the 2022-MOB-01. (AR 11974.) Attachment G also explained that 2022 PEIR mitigation measures “are expected to apply” to development and implementation of the infrastructure plans under the Cooperative Agreement. (AR 11974.)

With

no citation to the record, Petitioner states that the Air District’s “enactment of the Agreement and abandonment of an enforceable emissions rulemaking will result in new, or more severe, unassessed environment effects, necessitating an Initial Study and EIR for the Agreement.” (Opening Brief, 14:1-14:3.) As the Court addressed above, the notion that the plan lacks enforceable emission rulemaking is incorrect. The Ports are contractually obligated to implement zero-emission infrastructure plans and the Air District can legally enforce that obligation through the penalty provision of the Cooperative Agreement. (AR 12113.) Petitioner may not like the way enforcement has been setup, but Petitioner’s preferences are not a reason for the Court to grant this petition for writ of mandate.

Petitioner

cites *Sierra Club v. County of Sonoma* (1992) 6 Cal.App.4th 1307, 1319 for the proposition that as long as the Cooperative Agreement may have a significant adverse effect on the environment which was not examined in the prior program EIR, a new EIR must be created.

The

law has defined this *Sierra Club* test as the “reverse substantial evidence” test, which applies only in limited circumstances – where the initial EIR is a “program EIR” and a subsequent project is proposed which is not the same or within the scope of the plan described in the program EIR. (*Olen Properties Corp. v. City of Newport Beach* (2023) 93 Cal.App.5th 270, 279-280.) Substantial evidence in the record indicates that the Draft

Cooperative Agreement covers on-port infrastructure for all port sources, just like Proposed Rule 2304. (AR 10859.) Therefore, substantial evidence indicates that the scope of both projects is similar. (Ibid.) The reverse substantial evidence test should not be applied here.

Petitioner

also cites *Center for Sierra Nevada Conservation v. County of El Dorado* (2012) 20 Cal.App.4th 1156, 1185 for the proposition that the Air District cannot shield subsequent projects affecting the environment simply on the grounds that it has previously recognized that the Ports are subject to adverse air quality.

However,

the facts of that case differed significantly from the facts of the case before this Court. In *Center for Sierra Nevada Conservation*, a 2004 program EIR Noticed that even with the anticipated mitigation measures of Options A and B and other proposed mitigation measures in place, impacts would not be reduced to a less-than-significant level. (Id., at p. 1182.) By contrast, the subsequent negative declaration for the oak woodland management plan concluded that cumulative impacts would be less than significant. (Ibid.)

This

is not a situation where a past program EIR and a present CEQA document have come to diametrically opposed conclusions. Attachment G explained that while there was still speculation about the exact scope of future infrastructure plans, the development and implementation of infrastructure plans as required by the Cooperative Agreement could have the same or less significant impacts than the 2022-MOB-01. (AR 11974.)

Ultimately,

though, a court's job is not to review a record to determine whether there is a possibility of an environmental impact that a government agency did not mention. (*Latinos Unidos de Napa v. City of Napa* (2013) 221 Cal.App.4th 192, 205.) A court's job is to view the evidence in the light most favorable to the agency's decision to determine whether substantial evidence supports the decision not to require additional review. (Ibid.)

And

here, the Court finds that there was substantial evidence not to require additional review.

Attachment

G explained that the activity under the Cooperative Agreement will occur at the same or smaller scale, and there would be no new rail or truck routes. (AR 12013, AR 12031.) The same regulations reviewed in past CEQA documents are still in effect: those governing spill-containment, water quality, battery-recycling, and building codes. (AR 12042-12043.) As Attachment G stated, activity under the Cooperative Agreement “is not expected to result in new or modified physical changes or impacts that were not previously analyzed.” (AR 12052.) Consistent with the previous PEIR, Attachment G noted that some impacts remain unclear until such time as specific projects are proposed. (AR 11974-11977, 12014, 12024.) As the Court said above, the law does not require an agency to expend resources on speculative impacts. (Cal. Code Regs., tit. 14, § 15145.)

The

Cooperative Agreement will ultimately result in the construction and operation of zero-emission infrastructure plans. (AR 11961.) The Agreement is likely to result in increased demand for electricity and alternate fuels. The 2022 PEIR considered the environmental impacts of these changes, including air quality and greenhouse gases (AR 1536, 1548, 1565, 1576-1577, 1581, 1585), energy (AR 1612, 1622-1623), hazards and hazardous waste materials (AR 1654), noise (AR 1729, 1732, 1735, 1739) and solid and hazardous waste. (AR 1750, 1754, 1762, 1764.)

The

2022 PEIR concluded that five impacts were significant: the impact of construction on air quality, even after mitigation (AR 1262); the increase in demand for energy from operation of infrastructure (AR 1264); the increased transport of hazardous materials (AR 1264-1265); noise from construction (AR 1267); and increases in waste from construction and operation (AR 1268.) Consistent with a “first-tier” level of review, the 2022 PEIR identified many impacts that cannot be analyzed in detail until such time as specific projects are proposed. (See, e.g., AR 1525, 1548, 1551, 1599, 1262, 1722, 1736.)

Thus,

substantial evidence shows (1) the charging and fueling infrastructure as contemplated in the Port-related control measures and the Cooperative Agreement remains the same; (2) the impacts are the same or less; (3) the mitigation measures are equally applicable; and (4) there is no new information that

changes any prior analysis.

3.

Petitioner's argument that the Air District did not incorporate feasible mitigation measures and alternatives developed in the program EIR into later activities in the program

Next,

Petitioner indicates that the Air District did not incorporate feasible mitigation measures and alternatives developed in the program EIR into later activities in the program, in violation of CEQA Guidelines Section 15168, subd. (c)(3). (Opening Brief, 14:23-15:12; Cal. Code Regs., tit. 14, § 15168, subd. (c).)

According

to Petitioner, Section 15168, subd. (c) required the Air District to “continue with PR 2304 or adopt[] another enforceable indirect source rule” rather than the Cooperative Agreement purportedly because a rule, unlike the Cooperative Agreement, would “guarantee timely or measurable emission reductions.” (Opening Brief, 14:27-15:2.)

This

claim is not correct. First, Petitioner cites no part of the record which indicates Proposed Rule 2304 was actually adopted as a mitigation measure in either Program EIR. This means CEQA Guidelines Section 15168, subd. (c)(3) does not govern this case.

Petitioner

also identifies no part of the record which indicates Proposed Rule 2304 guarantees timely or measurable emission reductions.

Petitioner

then states that the Air District “unilaterally decided to enact an Agreement relying on voluntary infrastructure plans, future negotiations, and mitigation payments that do not guarantee timely or measurable emission reductions.” (Opening Brief, 15:2-4.)

Substantial

evidence suggests that the Air District did not unilaterally decide to enact an Agreement. On August 1, 2025, after public testimony, the Board directed staff

to negotiate the terms of a Cooperative Agreement with the Ports. (AR 10791; 11853.) the Air District held public meetings on August 28, 2025 and October 15, 2025 and five virtual office hour sessions to discuss the Cooperative Agreement. (AR 10795, 11530.)

4.

Petitioner's argument that the Air District failed to prepare sufficient environmental documentation and assessment for the agreement

Finally,

Petitioner suggests that broadly speaking, the Air District failed to prepare sufficient environmental documentation and assessment for the agreement. (Opening Brief, 15:20-16:16.)

This

argument misapplies CEQA law. The Air District was not obligated to prepare an initial study, an EIR or negative declaration, or a notice of preparation prior to approving the Cooperative Agreement. (Opening Brief, 15:13–16:16.) Those obligations only arise when a later activity falls outside the scope of the program EIR or a Section 21166 trigger exists. (Cal. Code Regs., tit. 14, §§ 15162, 15168, subds. (c)(1), (c)(2).) Where, as here, the agency finds based on substantial evidence that the activity is within the scope of the activity previously studied, “no new environmental document” is required. (Cal. Code Regs., tit. 14, § 15168, subd. (c)(2).)

Petitioner

asserts that a new CEQA document “would have assessed whether the agreement will produce measurable, enforceable, emission reductions” and would have assessed whether the Cooperative Agreement “will close the gap between the expected 2 to 3 tons per year of Nox reductions by 2031 and the Ports’ approximately 19-ton-per-day fair-share need identified in the 2022 AQMP.” (Opening Brief, 16:5-8.) This argument is unpersuasive.

A

new document prepared for a Cooperative Agreement would have evaluated the same things evaluated in the Program EIRs: changes to the environment that would have resulted from the construction and operation of zero–emission infrastructure at the ports. Contrary to what Petitioner suggests, CEQA does not require the Air District to consider whether emission reductions would help the region attain the NAAQS or the CAAQS or otherwise improve existing air quality. It is

the Clean Air Acts, not CEQA, that requires the Air District to engage in attainment planning.

Petitioner

further suggests that the Air District violated CEQA by “fail[ing] to adequately include and consider the public’s comments and input in the decision–making process” that led to the Cooperative Agreement. (Opening Brief, 16:18–19.) All of the authorities that Petitioner cites in support of this statement, however, apply to the preparation of new CEQA documents. Petitioner does not cite any legal authority which requires a certain level of public participation when an agency determines that a later activity is within the scope of an activity previously studied in a Program EIR.

The

Air District also did engage in a public process, and Petitioner does not explain what was wrong with that process. the Air District held public meetings on August 28, 2025 and October 15, 2025 and five virtual office hour sessions to discuss the Cooperative Agreement. (AR 10795, 11530.) Public comments produced material changes. Enforcement triggers with escalating financial consequences were added; default payments were doubled; the Ports’ proposed ten–year rulemaking prohibition was removed from the contract and replaced with a five–year direction housed in a Board resolution; and the termination notice period was halved to 45 days. (AR 11851-11852; AR 11855–11856; AR 11858.) Hundreds of businesses and organizations wrote letters or shared feedback explaining why a Cooperative Agreement would offer benefits, explaining that it would allow parties to adapt, make corrections, and accelerate progress, rather than be stuck with rigid mandates that might halt progress or shift investment elsewhere. (AR 11062, 11197, 11209, 11213 – 11216.)

There

is substantial evidence in the record to suggest that the Air District adequately considered public comments and input in its decision-making.

C.

Did the Air District violate the California Clean Air Act?

Petitioner

alleges that the Air District violated its duties under the California Clean

Air Act by acting arbitrarily, capriciously, and unlawfully, when executing a Voluntary Agreement tailored solely to infrastructure planning without enforceable emission reduction commitments in lieu of a binding indirect source rule. (Opening Brief, 18:26-19:2.)

According

to the California Clean Air Act, the Air District must adopt rules and regulations which conform to its attainment plans and which “[r]equire the use of best available control technology for new and modified sources and the use of best available retrofit control technology for existing sources,” “provide for indirect source controls in those areas of the south coast district in which there are high-level, localized concentrations of pollutants,” and “provide for transportation control measures.” (Health & Safety Code § 40440, subd. (b)(1), (b)(3), (b)(4).)

As

the Air District admits, the Cooperative Agreement is not a rule or regulation. (Opposition, 19:7-8.) Because the above Health & Safety Code statutes only pertain to rules and regulations, the Cooperative Agreement cannot be said to have violated any of the statutes mentioned in Petitioner’s brief.

As

a general matter, based on the existing record, the Court cannot say that the Air District has violated the California Clean Air Act by adopting the Cooperative Agreement. The record before the Court does not demonstrate that the Air District lacked other projects or initiatives that satisfy the Health & Safety Code statutes mentioned in Petitioner’s brief.

The

California Clean Air Act does not prohibit the Air District from engaging in other efforts to reduce emissions beyond rules and regulations. Indeed, another part of the Health and Safety Code (not part of the California Clean Air Act) authorizes the Air District to “contract with any federal, state, or local governmental agencies...” to reduce emissions. (Health & Safety Code, § 40701, subd. (f).)

Petitioner

argues that because it is feasible to have a binding indirect source rule, a binding indirect source rule should have been created by the Air District. (Opening Brief, 20:22-23.) However, this is Petitioner’s policy preference and

not a ground that the Court can use to grant a petition for writ of mandate.

There

is also one other problem: Petitioner's conviction that the Cooperative Agreement is voluntary. (Opening Brief, 20:8-21.) However, the Court reads the Cooperative Agreement to have specific requirements: If a party fails to meet its commitment or anticipates an inability to meet its commitment, the party must provide notice and seek to negotiate a mutually agreeable solution within 90 days of the date of the Notice. (AR 12112.) Any dispute not resolved in the normal course of business can be submitted for mediation. (AR 12113.) If a party is still in breach of a Cooperative Agreement, the aggrieved party can seek relief from a federal or state court. (AR 12113.) In sum, the Air District has entered into a contract as is allowed under the law (Health & Safety Code, § 40701, subd. (f)) and that contract allows the Air District to legally enforce the obligation to prepare and implement zero-emission infrastructure plans. This is not a "non-regulatory, toothless agreement." (Reply, 9:7.)

Petitioner

argues that a finding that the Air District not comply with the California Clean Air Act would be a literal interpretation that courts should avoid since it would "result in absurd consequences the Legislature did not intend." (Los Angeles Unified School Dist. v. Superior Court (2023) 14 Cal.5th 758, 768.)

The

Court is not "finding" that the Air District does not need to comply with the California Clean Air Act. All evidence suggests the Air District has complied with the California Clean Air Act, such as when it adopted the 2016 and 2022 AQMPs. Those documents demonstrated attainment of the NAAQS and the CAAQS as required by the Clean Air Act and the California Clean Air Act. Both attainment demonstrations were approved by the Clean Air Resources Board and submitted to the Environmental Protection Agency. (84 Fed. Reg. 28132, 28134 (June 17, 2019); Cal. Air Resources Bd., Res. No. 23–4 (Jan. 26, 2023).)

The

Court concludes that the Cooperative Agreement does not itself violate any provision of the California Clean Air Act.

D.

Was there an unlawful abrogation of police powers?

#### Petitioner

contends that the Air District surrendered their police powers because it has the exclusive duty to oversee and maintain air pollution control at the Ports, and has agreed “to not pursue any new rulemaking” relating to Port–related mobile sources during the five year term of the Agreement “unless the Cooperative Agreement is terminated before five years.” (Health & Safety Code § 40412, AR 65, Opening Brief, 22:21-23:27.)

#### Land

use regulations involve the exercise of the state’s police power, and it is well settled that the government may not contract away its right to exercise the police power in the future. (*Tiburon Open Space Committee v. County of Marin* (2022) 78 Cal.App.5th 700, 730.) However, a contract is only void when a governmental entity completely surrenders its control of a proper agency function. (*Morrison Homes Corp. v. City of Pleasanton* (1976) 58 Cal.App.3d 724, 734.)

#### There

are several factors a court considers to determine whether a governmental entity has “completely” surrendered control of a proper agency function. A contract might be invalid if it prohibits the government from enacting future regulations or leads to the government incurring monetary consequences as a result of a breach of the contract. (*County Mobilehome Positive Action Committee, Inc. v. County of San Diego* (1998) 62 Cal.App.4th 727, 739-741.)

#### Courts

have also identified factors when a governmental agency has not surrendered control of a proper agency function. For example, when a governmental agency has authority to enter into a contract, the contract is developed in accordance with the rules, the contract retains the agency’s discretionary authority, and the governmental agency’s decision to terminate its rule-making authority is not indefinite, the governmental agency has not abrogated its police power. (*Santa Margarita Area Residents Together v. San Luis Obispo County* (2000) 84 Cal.App.4th, 221, 230-233.)

#### Here,

the Court concludes that the Air District has not completely surrendered their rulemaking authority. the Air District has authority to “contract with any federal, state, or local governmental agencies...” to reduce emissions. (Health

& Safety Code, § 40701, subd. (f).) The Cooperative Agreement states that any party, including the Air District, can terminate the Agreement “for any reason” on forty-five days’ written notice. (AR 12112.) This indicates the Air District retains the ability to exit the agreement and immediately pursue rulemaking. Contrary to Petitioner’s reply brief, the Court does not read AR 64 to suggest the Air District has promised not to invoke the exit clause. All AR 64 says is that the Air District does not have an interest to invoke the exit clause unless the Cooperative Agreement is unsuccessful.

The Agreement also expressly reserves each party’s future regulatory authority. (AR 12118 [“[n]othing in this Agreement shall be construed as a waiver of any Party’s discretionary authority or deemed to restrict authority granted to any Party under law in any way with respect to future legislative, administrative, or other actions”].)

There is also no evidence that the Air District will be liable monetary damages associated with any sort of breach of contract claim. The Cooperative Agreement allows the Air District to exit the Agreement for any reason at all.

Based on the record, the Court finds that the Air District did not act arbitrarily or capriciously by signing onto the Cooperative Agreement.

## CONCLUSION

The Court DENIES the petition for writ of mandate.

Pursuant to Local Rule 3.231, subd. (n), the Air District shall prepare, serve, and ultimately file a proposed judgment.

IT IS SO ORDERED.

Dated: September  
23, 2026

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Joseph Lipner

Superior  
Court Judge